



DEALERSHIP AGREEMENT

This Agreement is executed on ____ / ____ / ____ between:

PARTY 1 – THE COMPANY

HIGHLIGHT RENEWABLE PVT LTD

(A Private Limited Company incorporated under the Companies Act, 2013)

Corporate Identity Number (CIN): U35105GJ2025PTC166804

Permanent Account Number (PAN): _____

GST Registration Number: _____

Registered Office: 110, Pragati Complex, Navjyot Park, 150 FT Ring Road, Rajkot – 360005, Gujarat

Director: Mr. Vandit Sojitra

(Hereinafter referred to as "THE COMPANY" or "HIGHLIGHT RENEWABLE PVT LTD")

PARTY 2 – THE DEALER

Dealer Name: _____

Business Address: _____

Business Identity Document: _____

GST Registration Number: _____

Authorized Signatory: _____

(Hereinafter referred to as "THE DEALER")

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RECITALS

WHEREAS, the Company is lawfully engaged in renewable energy solutions, solar power systems, EPC services, rooftop solar installations, and allied energy-related services as per its incorporation documents. The Company seeks to expand its market reach through authorized dealers for better customer service and market penetration.

WHEREAS, the Dealer desires appointment as an authorized distributor to market and install the Company's solar products and services. Both parties wish to establish a mutually beneficial business relationship with clear terms and obligations.

NOW THEREFORE, in consideration of mutual covenants and agreements, the parties agree as follows:

1. APPOINTMENT AND TERRITORY

1.1 Appointment

The Company hereby appoints the Dealer as a NON-EXCLUSIVE AUTHORIZED DEALER for marketing, distribution, and installation of solar products. This appointment is subject to continuous compliance with agreement terms and Company policies. The dealership covers specified products only and excludes any competing arrangements.

1.2 Territory

The dealership territory is limited to: Rajkot. The Dealer cannot operate outside this territory without written Company approval. Territory boundaries are defined by administrative limits and cannot be extended without mutual consent.

1.3 Non-Exclusive Rights

This appointment is non-exclusive, allowing the Company to appoint additional dealers. The Company reserves rights to direct sales and other distribution channels. Dealer acknowledges no territorial exclusivity or protection from competition.

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2. SCOPE OF DEALERSHIP

2.1 Authorized Activities

The Dealer may market Company solar products, generate customer leads, and facilitate sales conversions. Installation coordination under Company supervision is permitted along with basic customer support services. All activities must align with Company guidelines and quality standards.

2.2 Prohibited Activities

The Dealer cannot sell competing products or represent competitors during this agreement term. No product modifications, unauthorized warranty commitments, or sub-dealership arrangements are permitted. Company name usage is restricted to authorized dealership activities only.

3. DEALER OBLIGATIONS

3.1 Customer Documentation

The Dealer must collect and verify complete customer KYC documents including identity, address, and property proofs. All application forms require accuracy verification before submission to the Company. Proper documentation maintenance per Company standards is mandatory with prescribed timeline compliance.

3.2 Payment Collection

Minimum 30% advance payment collection is required before order processing with balance payment before material dispatch. All customer payments must be deposited in Company-designated accounts within 24 hours. Payment receipts must be provided to customers with proper record maintenance.

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3.3 Installation Management

Installation coordination includes site preparation, DISCOM approval verification, and quality supervision. Site handover requires customer orientation and completion reports with photographs. All installations must follow Company technical specifications and safety protocols.

3.4 Customer Service

Primary customer support includes grievance handling, warranty claim coordination, and service request management. Regular customer follow-ups and satisfaction surveys are required. The Dealer serves as first point of contact for all customer issues and complaints.

3.5 Material Handling

Company materials require proper storage, security, and handling with immediate damage reporting. Unused materials must be returned as per Company instructions. Inventory management includes accurate tracking and accountability for all received materials.

4. PAYMENT TERMS

4.1 Advance Requirements

Minimum 30% advance payment is mandatory before order processing with full payment before material dispatch. No credit terms are available unless specifically approved in writing.

4.2 Commission Structure

Commission rates are mutually agreed and confirmed in writing based on net invoice values. Payment occurs only after full customer payment realization within 15 days of receipt. Commission calculations exclude taxes, discounts, and other deductions as applicable.

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4.3 Installation Charges

Installation charges follow prevailing Company rates with payment after successful completion and customer acceptance. Quality issues or delays may result in deductions from installation payments.

5. MATERIAL AND FINANCIAL SECURITY

5.1 Security Deposit

The Dealer must deposit a refundable security amount of ₹0/- before commencing dealership activities. This deposit secures Company interests against potential defaults or violations. Security refund occurs upon successful agreement termination and obligation settlement.

5.2 Material Holding Rights

The Company reserves rights to hold or retain materials for policy violations, misconduct, or outstanding payments. Material holding also applies to quality complaints, customer disputes, or agreement breaches.

6. WARRANTIES AND LIABILITIES

6.1 Product Warranties

Product warranties follow manufacturer terms with Company coordination for claims and replacements. Dealers must communicate warranty terms clearly to customers at sale time.

6.2 Liability Limitations

Dealer liability covers installation defects and workmanship issues with Company indemnification against third-party claims. The Company assumes no liability for Dealer acts, omissions, or independent business decisions.

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7. CONFIDENTIALITY

7.1 Protected Information

Strict confidentiality applies to customer data, pricing policies, technical specifications, and business strategies. All proprietary Company information requires protection from unauthorized disclosure or competitive use.

7.2 Usage Restrictions

Protected information use is limited to authorized dealership activities only. No disclosure to competitors, unauthorized persons, or for personal benefit is permitted.

8. COMPLIANCE REQUIREMENTS

8.1 Legal Compliance

The Dealer must comply with Companies Act 2013, GST regulations, Consumer Protection laws, and Electricity Act provisions. Environmental protection and labor law compliance is mandatory.

8.2 Regulatory Standards

DISCOM regulations and net metering procedures require strict adherence. Subsidy claim processes must follow prescribed guidelines with accurate documentation.

9. TERMINATION

9.1 Company Termination Rights

The Company may terminate immediately for material breaches, fraud, insolvency, or repeated quality issues. Non-compliance with policies, unauthorized activities, or customer complaints may trigger termination.

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9.2 Mutual Termination

Either party may terminate with 30 days written notice for convenience. Post-termination obligations include dues settlement, material return, and trademark usage cessation.

10. DISPUTE RESOLUTION

10.1 Resolution Process

Disputes require good faith negotiation attempts before formal proceedings. Unresolved matters proceed to arbitration under applicable arbitration laws.

Jurisdiction: Rajkot, Gujarat

IN WITNESS WHEREOF

The parties have executed this Agreement as of the date first written above.

For HIGHLIGHT RENEWABLE PVT LTD

Authorized Signatory

Name: Mr. Vandit Sojitra

Designation: Director

Date:

Signature:



For Dealer

Name:

Designation:

Date:

Signature:

Witnesses: 1 Name:

Signature:

Witnesses: 2 Name:

Signature:

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